

HOUSE BILL 2391

By Martin B

AN ACT to amend Tennessee Code Annotated, Section
49-6-1021, relative to student discipline.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-1021(b)(2), is amended by
deleting the subdivision and substituting instead:

(2) To satisfy the requirements of subdivision (a)(1), physical activity:

(A) Must include unstructured play outside, unless weather conditions
negatively impact reasonable execution of physical activity outside; and

(B) Does not include:

(i) Time during which a student is permitted to use an electronic
device; or

(ii) Time spent by a student in a physical education class.

(3)

(A) A student may be denied the privilege of participating in physical
activity if the student engages in conduct or behavior that violates the discipline
policy or code of conduct adopted by the school or school district, or if the
student engages in any violent or threatening behavior or any other behavior that
significantly disrupts or impairs the ability of other students to participate in, and
receive the benefits of, the physical activity required in this section.

(B) A teacher or administrator may, as a form of discipline:

(i) Remove a student from, or deny a student participation in, any
physical activity or physical activity period for engaging in any conduct or
behavior described in this subdivision (b)(3); or

(ii) Assign a student who is removed from, or denied participation in, any physical activity or physical activity period pursuant to this subdivision (b)(3) alternative lessons, assignments, or activities, including physical activities, to improve the student's conduct or behavior.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.